ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	6th Commission Meeting
DATE:	16 December, 2020
TIME:	09:30 AM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Review the resolutions of the 26th Session of the National Council on the ACC's Annual Report 2019 – ASCT	*The Commission along with the Departments/ Divisions reviewed the resolutions of the National Council and* decided the following against the respective resolutions: **Resolution 1 - *Set clear criteria for selection of gewogs/agencies to conduct advocacy sessions based on their immediate need:*** The meeting noted that it is important to adopt a comprehensive strategy of reaching out the ACC's advocacy and awareness programs, with customized contents focused on specific target groups ranging from agencies, gewogs, private sector, youth, voters, citizens etc. The data and information available with ACC re. research and study reports, complaints, case investigations, prosecutions and judgements would be invaluable for customization of the contents. Hence, directed Education Division (ED) to develop a strategy immediately, outlining the approaches and medium of advocacy (eg. use of multimedia), schedule, and prioritizing target groups/agencies based on the principles of vulnerability, among others. Further, directed ED to maximize the use of existing IEC materials, experience, knowledge and information within ACC itself. **Resolution 2 - *Conduct periodic impact assessment of the advocacy programmes on the behavioral changes of the target group*:** Noted that while a study of the impact on behavioral changes as a result of the ACC's general advocacy programmes would not be viable immediately given that education is a long-term intervention, initial steps could be taken towards it. To this, ED was directed to enhance monitoring & evaluation of the Integrity Clubs to enable assessment of immediate as well as long-term behavioral changes of the students. In addition to current practice, the ED was directed to initiate the maintenance of dossier of all the integrity club members to enable the conduct of tracer studies on the students, ensuring at the same time that the students/ parents are informed and their consent is received. Directed DoPE to also follow-up on annual cash award given to the police trainees of RBP by the ACC in the past. **Resolution 3 - *Upscale the awareness programme on electoral corruptions ahead of the third local Government elections*:** Directed ED to collaborate with the ECB to develop IEC materials and a module related to integrity & effects of corruption to be proposed for integration into ECB's general voter education program. Where possible, the ACC to team up with the ECB officials to deliver the contents (particularly the session for Thromde elections). The Chairperson to initiate the discussion after DoPE presents a final proposal. The time frame to be noted as elections of the three Thromde Tshogdes of Thimphu, Phuentshogling and Gelephu could be called in the first quarter of 2021 unless otherwise decided given the exigencies and uncertainties of the pandemic.

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		Resolution 4 - *Establish effective follow-up system on the ATRs*: Directed DoPS to form a team to review pending ATRs in detail. Accordingly in the next two weeks, the team to present its proposal to the Commission to resolve the ATR backlogs. Further, in the same meeting, the DoPS to present its comprehensive proposal to strategize management of administrative nature of complaints, as against the current system of sharing with agencies. **Resolution 5 - *Accord equal emphasis on proactive measures by identifying agencies/individuals with high risk of corruption and making timely interventions*:** This is very much in line with the ACC's priorities to strengthen proactive investigations. The meeting also discussed the need to enrich information for intelligence by encouraging staff to report any real time crime and engaging relevant staff to collect informal yet quality information. Directed DoI to strategize its implementation with relevant Department and Division. Further, Prevention Division to present its proposal to use strategic intelligence for systemic correction. **Resolution 6 - *Reconcile any contradictory findings of two or more reports published by the ACC*:** Noted that the findings are not contradictory *per se* but the confusion is probably from the way in which various information had been presented. Decided to revisit presentation of data analysis in the future Annual Reports to avoid misunderstanding or misinterpretation. **Resolution 7 - *Liaise with Royal Civil Service Commission to establish a separate security unit within the Commission*:** Noted that the proposal to establish the Unit had already been submitted to the RCSC. **Resolution 8 - *Enhance coordination between ACC & OAG*:** Towards improving communication and coordination on cases referred, the Commission decided to share the next case, due for referral, to the OAG beginning with the convening of a presentation meeting. The presentation shall be a pilot to facilitate discussion and establish understanding between the two institutions to continue sharing cases through presentation, involving relevant prosecutors and the team responsible to assign cases. Accordingly, other issues with the OAG may be discussed and taken-up in the similar manner. Further, directed the DoI to present its revised proposal related to enhancing collaboration between law enforcement and regulatory agencies to the Commission.
2	Recent development on Mandatory Indicators in APA/APT – PPS & DoPE *It was reported that the Mandatory Indicators are likely to be dropped from the APA/APTs.*	The Commission decided to justify the need to retain the Mandatory Indicator (MI) related to 'corruption reduced' to the Hon'ble Prime Minister, Chairperson of the High Power Committee. Depending on the openness to negotiate, the Commission discussed that the number of activities under the MI can be prioritized from maximum of six to minimum of two, in the order of importance and urgency to implement the specific activities but the best-case scenario is to maintain status quo for the remaining six months of the current FY.
3	Plan to finalize the CSO engagement programme -PPS	The Commission endorsed the proposal to conduct the finalization workshop. However, directed the PPS to increase participants from CSOs, Justice Sector and Governance institutions to ensure development and ownership of inclusive and practical activities and plans. The Commission also cautioned the programme should not create confusion in the role of the BTI and ACC in engaging CSOs to prevent corruption.

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4	Review the complaint related to Asset Declaration - ADMD	In the view that the complaint was related to incomplete declaration and the possibility of spooking a related complaint, the Commission directed the DoPS to review the complaint and submit to the Commission for further decision.

Commissioner **Commissioner** **Chairperson**

Resolution of 26th Session of the National Council on the ACC's Annual Report 2019

The National Council recommended the ACC to:

1. Set clear criteria for selection of gewogs/agencies to conduct advocacy sessions based on their immediate need; **(ED-DoPE)**
2. Conduct periodic impact assessment of the advocacy programmes on the behavioural changes of the target group; **(ED-DoPE)**
3. Upscale the awareness programme on electoral corruptions ahead of the third local Government elections; **(ED-DoPE)**
4. Establish effective follow-up system on the ATRs; **(CMD-DoPS)**
5. Accord equal emphasis on proactive measures by identifying agencies/individuals with high risk of corruption and making timely interventions; **(DoI & PD-DoPE)**
6. Reconcile any contradictory findings of two or more reports published by the ACC (for example, NIA 2019 indicates outstanding rating for Local Government while the corruption complaints received against LGs as per the annual reports reflect the highest); **(PPS-SECT)**
7. Liaise with Royal Civil Service Commission to establish a separate security unit within the Commission; and **(HRS-SECT)**
8. Enhance coordination between ACC & OAG. **(PPS-SECT, DoI & LD)**